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MEMO

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To:	Kris Croskery-Hodgins and John-Paul Negrinotti
From:	Patrick Townes, BA, BEd and Jamie Robinson, BES, MCIP, RPP
Date:	July 7, 2022
File:	12178BK
Subject:	Response to Dickinson and Duggan Land Swap Request

This memorandum has been prepared in response to a request for a Shore Road Allowance Closure and a Land Swap at the property locally known as 13 Rocky Shore Drive, which is owned by Andrea Dickinson and Tracy Duggan.

Background/Proposal

The owners have recently purchased the property in order to have a docking site for access to their cottage which is located on the island immediately to the southwest. During the survey work that has taken place on the property by Goodridge Goulet Planning & Surveying Ltd., it was made apparent that the recent extension of Birchgrove Road which is used for municipal fire department access and a public access during the winter months was located on private lands, being the property at 13 Rocky Shore Drive.

The request for the Land Swap involves transferring the portion of the property that is used for the lake access point to the Township, to avoid potential legal liability from the owners as a result of members of the public traversing their property. The owners are also requesting to purchase and close the shore road allowance that is located adjacent to the lake.

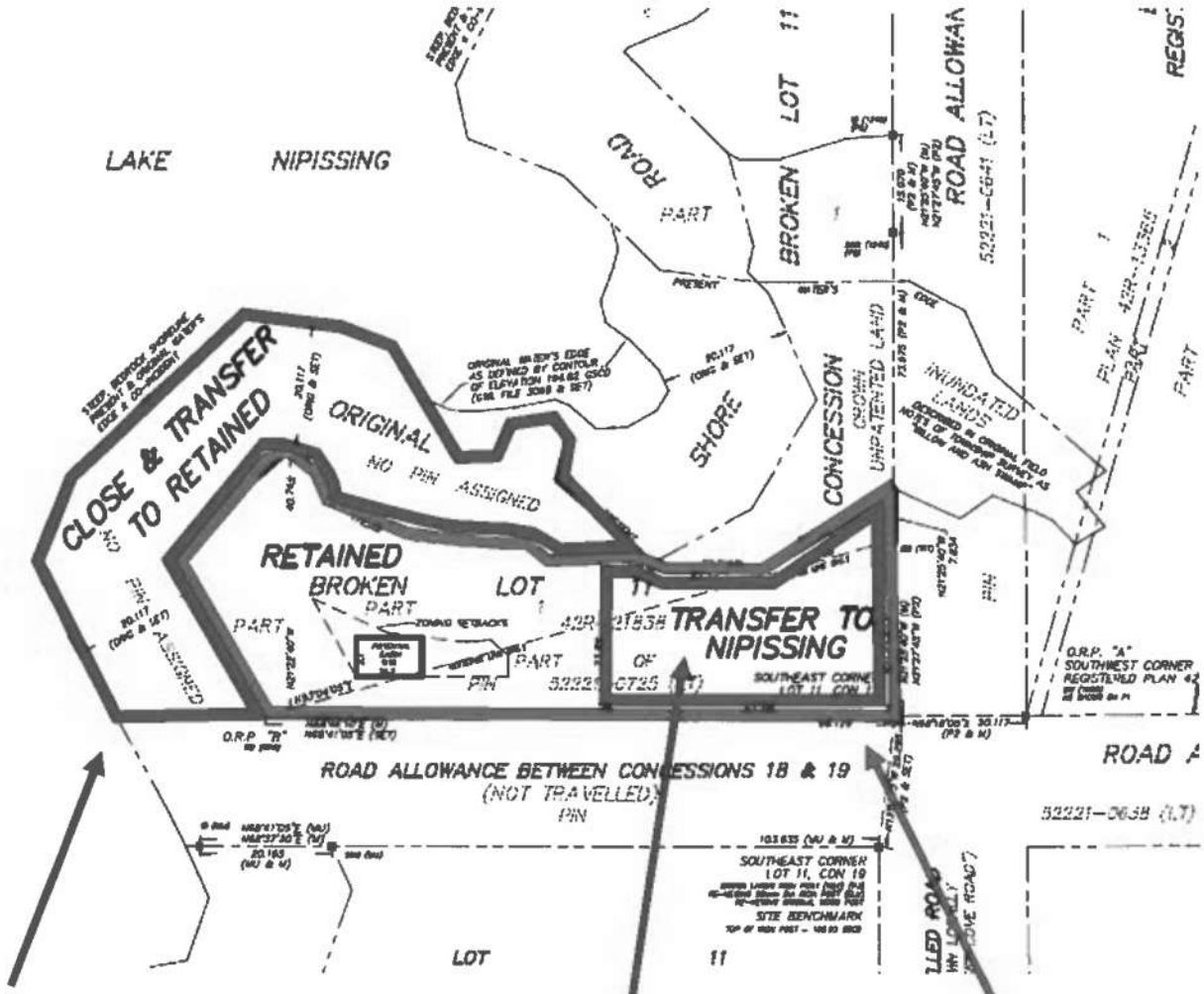
The following is shown on Figure 1 (attached) – the subject property, the lands to be transferred to the Township, and the portion of the shore road allowance to be closed and purchased.

Next Steps

Following a review of the request, staff recommend the following steps to facilitate the proposal:

1. That the request to purchase and close the shore road allowance be processed. Due to the presence of fish habitat, an assessment is required to demonstrate an appropriate docking location.
2. That the owner transfer the lands identified as "transfer to Nipissing" on Figure 1 to the Township.
3. That an easement be registered over the lands identified as "transfer to Nipissing" in favour of the Retained Lot in order to provide legal access.

Figure 1: Overview of Subject Property



Shore Road Allowance to be Purchased and Closed

Subject Property

Lands to be transferred to the Township (existing lake access located within these lands)

Goodridge Goulet Planning & Surveying Ltd.
ONTARIO LAND SURVEYOR
LAND USE PLANNERS & DEVELOPMENT CONSULTANTS

June 30, 2022

Ms. Chris Croskery-Hodgins,
Municipal Administrator, Clerk, Treasurer
Corporation of the Township of Nipissing
45 Beatty Street
Nipissing, ON P0H 1W0

Dear Chris,

Reference: **Proposed Shore Road Allowance Closure & Disposition & Land Swap**
Owners: Andrea Dickinson & Tracy Duggan
Part of Broken Lot 11, Concession 19, Geographic Township of Nipissing
Municipality of the Township of Nipissing, District of Parry Sound
PIN 52221-0725 (LT)
Our File: **1278-21**

Thank you for meeting with me and John-Paul from your office earlier this week for a preliminary discussion about a proposed land swap on subject property. As you are aware, my clients recently purchased the piece of land described as Part 1, Plan 42R-21838 in order to have a guaranteed docking site for access to their cottage on the island immediately southwest of this property. A copy of the proposal sketch with a satellite image underlay has been attached which shows both subject lands and the island. Also attached is said Proposal Sketch and a blow-up section of the sketch with the satellite image. Enclosed is a copy of PIN 52221-0725 (LT) and a copy of the Registry Office Block Map.

During the course of our survey involvement for the preparation of Plan 42R-21838, it became apparent that the recent extension of Birchgrove Road used by the municipal Fire Department for lake access was located almost entirely on the private lands. This access is also used as a "public access" point during the winter months and is used as a rendezvous for ice fishing outfitters to meet their clients. With the recent upgrades, some members of the public have begun using this access as a summer boat launch. All of the above uses expose my clients to a potential claim of liability should an accident or injury occur on their property.

My clients have cottaged on Lake Nipissing for many decades and generations of the family. They are very environmentally conscious and recognize the need for a safe filling site for the Fire Department's pumper truck. Although there is adequate room on site for a small cabin to be constructed, it is constrained. As stated above, my clients' intention on purchasing this land was to ensure a docking location in close proximity to their cottage.

My clients are proposing a land swap with the Municipality. They are willing to exchange the portion of land on which the access and turn area is located, titled "Transfer to Nipissing" on the attached sketch, in exchange for the Municipality closing and transferring the portion of the original shore road allowance titled "Close & Transfer to Retained" on the attached sketch. My

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Don Goulet, Survey Consultant (705) 493-7974 don.goulet@ggpsltd.com

Reference: File 1278-21

clients would have to retain a right-of-way over the lands to be transferred to the Municipality in order to guarantee access to the public road system. They would also be guaranteed that a Building Permit for the Retained lands could be issued even though they would no longer technically front on a maintained public road.

A review of the Municipality's Official Plan, Schedule B indicates a known fish habitat on the north side of the bay on which we front. Although the shoreline included in our proposal is not designated as such, it is within 120 meters of the sensitive area. As we discussed in our preliminary meeting, should the Council wish to proceed with our proposal, we will retain an environmental consultant to verify that my clients proposed use as a docking site would not have an impact.

My clients are very concerned with the summer use of the access as a public boat launch for motorized boats, fearing its impact on this sensitive area. They have no concerns with the launching of canoes and kayaks, the winter use or its use by the Fire Department. They are requesting that the access not be used as a public boat launching site for motorized boats. In addition to the environmental concerns, this use would also negatively impact the local marinas that rely on the revenues generated by allowing this use of their properties.

The line dividing the "Retained" lands from the proposed "Transfer to Nipissing" has been drawn for the sake of discussion only. We are recommending, should the Council wish to proceed, that I meet with your Operations Superintendent, Dan MacInnis, on site to determine the actual boundary based upon the operational needs of the Fire Department. The attendance of a representative of the Fire Department would also be beneficial.

In my opinion, this proposal has much merit and represents a win-win-win for the Municipality, my clients, the outfitters and the public. I would very much welcome the opportunity to present this to your Council at their July 12th meeting or at the earliest opportunity.

Sincerely,

Paul Goodridge